

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

JAIL PETITION NO.250 OF 2023

(On appeal against the judgment dated 21.06.2023, passed by the Lahore High Court, Lahore in Criminal Appeal No.18090 of 2019 and Murder Reference No.105 of 2019)

Abdul Razaaq

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s): Mr. Rehan Iftikhar, ASC

For the State: Mr. Tariq Siddique, Addl. PG, Punjab

Date of hearing: 18.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- On 02.07.2018 at about 3:00 p.m. Muhammad Shabbir Hussain (PW-6) along with Muhammad Naeem and Muhammad Arshad (*since given up*), was present at a mobile phone shop situated in *Muzaffar Colony, Faisalabad*, when he saw his minor niece, namely, Fiza Noor aged about 5/6 years, who had come out of her house for the purchase of eatables. In the meanwhile, an unknown culprit, riding a Honda Motorcycle 125-CC, wearing a printed shirt and blue pants, arrived there and abducted Fiza Noor by forcibly making her sit on motorcycle. PW Muhammad Shabbir Hussain chased him, but the culprit succeeded in making good his escape from the spot. He made announcements through the loudspeakers of nearby mosques in the surrounding localities and also informed the police regarding the abduction of his niece. The police reached the spot and, through wireless communication, directed barricades to be conducted in the area in an effort to

apprehend the culprit. On the same day at about 8:00 p.m., Muhammad Shabbir Hussain received information regarding the availability of the dead body of a minor girl within an area falling within the jurisdiction of Police Station *Razaabad*. Upon receipt of such information, he, along with his above-named companions proceeded there and identified the dead body as that of his niece Fiza Noor. On the statement of the Muhammad Shabbir Hussain (**'the informant'**), FIR No.397 dated 02.07.2018 was initially registered at Police Station *Samanabad*, District *Faisalabad*, under Sections 302, 364-A and 376 of the Pakistan Penal Code, 1860 ('PPC') against an unknown culprit. On the same day, he recorded a supplementary statement wherein he stated that Safdar Ali (PW-7) and Abdul Sattar informed him that on 02.07.2018 at about 3:30 p.m. they had seen the minor Fiza Noor, in the company of Abdul Razzaq (the petitioner), riding on a motorcycle when he was entering his house. On the basis of such information, he nominated the petitioner by name in the case. Muhammad Younas, ASI (PW-10), reached the place where the dead body of the minor deceased was lying. He secured two buccal swabs, the shalwar of minor deceased found lying near her dead body, a yellow-coloured shopper, and nail swabs of her left hand. He sealed the above articles into separate parcels and thereafter handed over the same to the Investigating Officer.

2. Dr. Zuneera Misbah (PW-2) conducted the postmortem examination of Fiza Noor deceased. During examination, she observed on the body of the minor deceased a bruise measuring 2 x 1.5 cm on the mucosa of the inner side of her lower lip; two lacerations measuring 1.5 x 1 cm and 1 x 1 cm on the inner side of left part of the mucosa of upper lip; and multiple crescentic abrasions on right cheek in an area measuring 6 x 4 cm, located about 2 cm away from right corner of the mouth. She further noted an abrasion measuring 2 x 2 cm on the left side of the forehead, 1 cm below the hairline, and another abrasion measuring 2 x 1 cm on the front of the left ankle joint. On local examination, the vulva of the deceased was found swollen and bruised, with bleeding from

the vagina. The hymen was freshly torn posteriorly at the seven and eight o'clock positions, and the fourchette was torn. In the anal region, three triangular lacerations measuring 2 x 1.5 cm, 1.5 x 1.5 cm, and 1.5 x 1 cm were observed at the three, six and eleven o'clock positions. The anal sphincter was damaged, and there was bleeding from the anus. As per opinion of Dr. Zuneera Misbah (PW-2), the cause of death of the minor deceased was injuries Nos.1 and 2, which led to asphyxia due to smothering. She secured necessary samples from various parts of body of the deceased for chemical and forensic analysis, including specimens from the stomach and intestine with their contents, liver, spleen, kidney and blood. He also secured three vaginal swabs, three anal swabs, three buccal swabs, and three swabs from the soiled area on the inner aspect of the right thigh for the purposes of semen detection, grouping and DNA analysis. These samples were sealed and handed over to Lady Constable Zarina Kousar No.7271/LC, who was accompanying the dead body of the deceased.

3. On 03.07.2018, the petitioner was intercepted at Allama Iqbal International Airport, Lahore by the Special Incharge, Departure, FIA Immigration, Lahore. It had come on record that after his nomination as accused by the informant in the supplementary statement, his name had been placed on the Exit Control List. The petitioner was thereafter taken into custody and handed over to Imran Haider, Inspector (PW-15), the Investigating Officer of the case. Upon personal search of the petitioner, his original passport, original CNIC and mobile phone were recovered and taken into possession vide recovery memo Exh.PO. On 04.07.2018, a team of the Punjab Forensic Science Agency (PFSA), Lahore visited the house of the petitioner and secured a towel having suspected bloodstains, a pair of pants containing suspected semen stains, and two outer sofa sheets. The said articles were taken into possession through recovery memo Exh.PB for forensic examination. On 09.07.2018, the petitioner underwent DNA testing and polygraph examination at PFSA, Lahore. Subsequently, on 27.07.2018, in consequence of the disclosure made by the petitioner during

investigation, a motorcycle (Exh.P-1), a catcher (Exh.P-2) and a pair of chappals (Exh.P-3/1-2) belonging to the minor deceased, Fiza Noor, were recovered by the Investigating Officer.

4. Upon completion of investigation, a report under Section 173 of the Code of Criminal Procedure, 1898 (**‘the Code’**) was submitted against the petitioner before the learned Additional Sessions Judge, Faisalabad (**‘the Trial Court’**). After full-dressed trial, the Trial Court, vide judgment dated 19.03.2019, convicted the petitioner under Section 302(b) PPC and sentenced him to death as *Ta’azir*, with a direction to pay Rs.500,000/- as compensation under Section 544-A Cr.P.C. to the legal heirs of the deceased, recoverable as arrears of land revenue, and in default thereof to further undergo six months’ simple imprisonment. The petitioner was further convicted under Section 364-A PPC and sentenced to death, and under Section 376 PPC to death along with a fine of Rs.2,500,000/- and in default of payment thereof to further undergo six months’ simple imprisonment.

5. The Lahore High Court, Lahore (**‘the High Court’**), while dismissing the appeal preferred by the petitioner-convict, maintained the convictions and sentences awarded by the learned Trial Court. Consequently, Murder Reference No.105 of 2019, sent by the Trial Court for confirmation or otherwise of the death sentence, was answered in the affirmative vide judgment dated 21.06.2023 (**‘the impugned judgment’**).

6. Feeling aggrieved, the petitioner-convict has approached this Court through the instant Jail Petition seeking leave to appeal against the impugned judgments of the Courts below.

7. We have heard the learned counsel for the petitioner-convict as well as the learned Additional Prosecutor General, Punjab, and have carefully examined the record, the evidence brought on the file and the impugned judgments with their able assistance.

8. The occurrence in question pertains to the kidnapping of minor Fiza Noor (since deceased), which took place on 02.07.2018

at about 3:00 p.m. within the jurisdiction of Muzaffar Colony, Faisalabad. Muhammad Shabbir Hussain (PW-6), the informant, is the eyewitness of the alleged abduction. On the basis of his statement, initially FIR was registered against an unknown culprit. In the FIR, though he did not nominate any person by name; however, such omission, in the peculiar circumstances of the case, reflects his bona fides. Had there been any ulterior motive, ill-will or prior grudge against the petitioner-convict, nothing prevented him from nominating the petitioner-convict at the very first instance. Instead, he narrated the occurrence as witnessed by him and disclosed in the FIR the features and physical characteristics of the culprit, as well as the description of the motorcycle used in the commission of the offence. Although the FIR was lodged with a delay of about six hours, however, the informant has furnished a plausible and satisfactory explanation for the same. He stated that immediately after the occurrence, he, along with his companions Muhammad Naeem and Muhammad Arshad, remained busy in searching for the minor, informed the police, and made announcements through loudspeakers for tracing the abducted child and apprehending the culprit. The petitioner-convict was subsequently nominated by the informant through his supplementary statement when he received information from Safdar Ali (PW-7) and Abdul Sattar that on 02.07.2018 at about 3:30 p.m., they had seen the minor Fiza Noor in the company of petitioner-convict, riding on a motorcycle while he was entering his house. In the given circumstances, the conduct of the complainant appears to be natural and in consonance with ordinary human behaviour. Had he intended to falsely implicate the petitioner-convict, he could conveniently have nominated him in the FIR itself.

9. Safdar Ali (PW-7), a resident of Street No. 9, Muzaffar Colony, Faisalabad, while appearing before the learned Trial Court, furnished evidence of last seen. He deposed that he and Abdul Sattar were working as property dealers and that on 02.07.2018 at about 3:15/3:30 p.m., they had gone to Street No. 4, Muzaffar Colony, Faisalabad, to inspect a house in connection with their business. It

is an admitted position that the petitioner-convict is also a resident of Street No. 4, Muzaffar Colony. He further stated that after inspecting the house, when they were returning and reached in front of the house of the petitioner-convict, they saw the petitioner-convict taking minor Fiza Noor on his motorcycle Honda 125 CC and entering his house; that thereafter he along with Abdul Sattar proceeded to Millat Town to see another property and, upon their return around the time of Maghrib prayer, they again observed the petitioner-convict near his house in a perplexed condition, riding a Honda 125 CC motorcycle and placing a bag upon it; that on the same night, he came to know that the dead body of minor Fiza Noor had been recovered from the area falling within the jurisdiction of Police Station Razaabad, District Faisalabad; that thereafter he disclosed the aforesaid facts to informant, Muhammad Shabbir Hussain (PW-6). In his cross-examination, PW Safdar Ali stated that the petitioner-convict was already known to him prior to the occurrence. He was subjected to lengthy and searching cross-examination; however, nothing could be elicited to suggest that he had any previous enmity, motive, or ill-will against the petitioner-convict. He furnished a plausible explanation regarding his presence near the house of the petitioner-convict on both occasions, which appears to be natural and in consonance with his avocation as a property dealer. It is also noteworthy that PW Safdar Ali is not related to the informant or the deceased and is, thus, an independent witness. The minor deceased was abducted at about 3:00 p.m., and PW Safdar Ali saw her in the company of the petitioner-convict at about 3:15/3:30 p.m., i.e., shortly after her abduction, when the petitioner-convict was taking her inside his house on a motorcycle. PW Safdar Ali again noticed the petitioner-convict at the time of Maghrib prayer in a perplexed state while loading a bag into his motorcycle. The proximity of time between the abduction and the sighting of the deceased with the petitioner-convict lends strong corroboration to the prosecution case. On careful scrutiny, the testimony of Safdar Ali, is found to be consistent, confidence-inspiring, and worthy of reliance. His

deposition inspires confidence and provides a convincing piece of last seen evidence against the petitioner-convict.

10. Muhammad Tayyab Javed (PW-2) is the witness with regard to the throwing of the bag by the petitioner-convict and the subsequent recovery of the dead body of minor Fiza Noor deceased therefrom. He deposed before the learned Trial Court that on 02.07.2018 at about 7:30/8:00 p.m., while he along with one Arshad was returning after their routine walk near Street No. 2, Munirabad Link Road, Ilyas Park, he observed that a bag fell from the motorcycle of the petitioner-convict. He called out to the petitioner-convict to inform him that the bag had fallen; however, instead of stopping, the petitioner-convict sped away from the spot. Upon suspicion, they opened the bag and found the dead body of a female child inside it. He further stated that he disclosed the said occurrence to the informant, Muhammad Shabbir Hussain (PW-6). This witness was also subjected to searching cross-examination by the defence, yet nothing could be elicited to demonstrate that he bore any animosity, prior enmity, ill-will, or ulterior motive against the petitioner-convict so as to falsely implicate him in the case. His testimony with regard to the time of recovery of the dead body i.e., 7:30/8:00 p.m. on 02.07.2018, materially corresponds with the statement of PW Safdar Ali, who had seen the petitioner-convict at about Maghrib prayer time loading a bag on his motorcycle near his house. This inter se consistency between the two independent witnesses lends further assurance to the prosecution case. It is also of significance that PW-2, like PW-7, is not related to the deceased party and thus can be regarded as an independent witness. Upon careful scrutiny, we find the testimony of Muhammad Tayyab Javed (PW-2) to be straightforward, natural, and confidence-inspiring. Undoubtedly, the “last seen theory” constitutes an important link in the chain of circumstances that may point, with reasonable certainty, towards the guilt of an accused. This doctrine permits the court, in appropriate cases, to expect the accused to offer a reasonable explanation regarding the cause of death when it is established that the deceased was last seen alive in his company.

However, it is well settled that a conviction cannot be based solely upon the “last seen theory.” The principle must be applied in light of the prosecution’s case as a whole, keeping in view the circumstances that precede and follow the point at which the deceased was last seen with the accused. Where an accused is shown to have been last seen with the deceased, he is expected to explain how and when he parted company with the deceased. The explanation furnished must appear to the court to be probable and satisfactory. If such an explanation is offered, the accused may be considered to have discharged the burden cast upon him. Conversely, if he fails to provide an explanation regarding facts within his special knowledge, he fails to discharge that burden. In cases resting on circumstantial evidence, such failure may constitute an additional link in the chain of circumstances established against him.

11. Article 122 of the Qanun-e-Shahadat Order, 1984 (QSO) provides that when any fact is especially within the knowledge of a person, the burden of proving that fact lies upon him. This provision comes into operation only after the prosecution has discharged its primary legal burden of proving the guilt of the accused by producing sufficient evidence, except for those facts which are particularly within the accused’s knowledge and which lead to the inescapable conclusion that the offence was committed by him. Importantly, Article 122 does not shift the overall burden of proof in a criminal trial, which always remains upon the prosecution. Rather, it lays down the rule that where an accused fails to explain facts within his special knowledge, facts which could support a theory consistent with his innocence, the court may treat such failure as an additional link completing the chain of circumstantial evidence. In the present case, the prosecution has, through cogent and convincing evidence, established that the minor victim was last seen in the company of the petitioner-convict. Consequently, it was incumbent upon the petitioner-convict to explain what transpired thereafter. His failure to furnish any plausible or satisfactory

explanation further strengthens the prosecution's case and completes the chain of circumstances pointing towards his guilt.

12. Dr. Zuneera Misbah (PW-2), who conducted the post-mortem examination on the dead body of minor Fiza Noor (deceased), observed multiple ante-mortem injuries. She noted a bruise measuring 2 x 1.5 cm on the mucosa of the inner side of the lower lip; two lacerations measuring 1.5 x 1 cm and 1 x 1 cm on the inner aspect of the left side of the upper lip; and multiple crescentic abrasions on the right cheek in an area measuring 6 x 4 cm, situated about 2 cm away from the right corner of the mouth. She further observed an abrasion measuring 2 x 2 cm on the left side of the forehead, 1 cm below the hairline, and another abrasion measuring 2 x 1 cm on the anterior aspect of the left ankle joint. On local examination of the genitalia, the vulva was found swollen and bruised with bleeding from the vagina. The hymen was freshly torn posteriorly at the seven and eight o'clock positions and the fourchette was torn. Examination of the anal region revealed three triangular lacerations measuring 2 x 1.5 cm, 1.5 x 1.5 cm, and 1.5 x 1 cm at the three, six and eleven o'clock positions. The anal sphincter was found damaged with bleeding from the anus. The medical officer opined that the cause of death was asphyxia due to smothering, consequent upon injuries Nos. 1 and 2. She also secured requisite samples from the body of the deceased, including specimens of stomach and intestine with their contents, liver, spleen, kidney and blood, as well as vaginal, anal, buccal and thigh swabs, for the purposes of chemical examination, semen detection and DNA analysis. Thus, the medical evidence furnished by Dr. Zuneera Misbah (PW-2), fully proves commission of rape and sodomy upon the minor deceased and then her murder.

13. As per the report of the Punjab Forensic Science Agency (PFSA), Lahore (Exh. PL), the DNA profile obtained from the nail swab of the right hand of the deceased and from the sperm fraction of the vaginal swabs was found to be consistent with the DNA profile of the petitioner-convict. Likewise, the DNA profile obtained from the

sperm fraction of the anal swabs and from the swabs secured from the soiled area on the inner aspect of the right thigh of the deceased was also found to be consistent with the DNA profile of the petitioner-convict. This Court in *Ali Haider alias Papu v. Jameel Hussain* has held that DNA evidence, owing to its scientific accuracy and conclusiveness, is regarded as a gold standard for establishing the identity of an accused and constitutes one of the strongest corroborative pieces of evidence, particularly in cases involving sexual offences.

“DNA evidence is considered as a gold standard to establish the identity of an accused. As a sequel of above discussion, it can safely be concluded that DNA test due to its accuracy and conclusiveness is one of the strongest corroborative piece of evidence. In *Salman Akram Raja* case (2013 SCMR 203), this Court has held that DNA test help provides the courts the identity of the perpetrator with high degree of confidence and by using of the DNA technology the Courts are in a better position to reach at a just conclusion, whereby convicting the real culprits and excluding the potential suspects, as well as, exonerating wrongfully involved accused. **DNA test with scientific certainty and clarity points towards the perpetrator and is, therefore, considered one of the strongest corroborative evidence today, especially in case of rape.**”

Same view has been reiterated by this Court in case of *Atif Zareef and others vs the State* (PLD 2021 Supreme Court 550) that DNA test report due to its scientific accuracy and conclusiveness, is considered as a gold standard to establish the identity of an accused and a very strong corroborative piece of evidence.

14. On reappraisal of the evidence on record, we are firm in our view to hold that the prosecution has proved the kidnapping of minor Fiza Noor by the petitioner-convict, committing her rape and sodomy upon her and then committing her murder through strong and confidence inspiring last seen evidence, and circumstantial evidence supported by medical evidence beyond the shadow of reasonable doubt. The cumulative effect of the evidence brought on record unmistakably leads to the conclusion that the chain of

circumstances is complete and coherent, giving rise to a reasonable and irresistible inference that the petitioner has committed the offence. Each circumstance so established is consistent only with the hypothesis of the guilt of the petitioner-convict and is incompatible with any reasonable hypothesis of innocence. It is noteworthy that the petitioner-convict neither opted to appear as a witness in terms of Section 340(2) of the Code nor did he produce any evidence in defence. His bare denial in the statement recorded under Section 342 of the Code, being a statement not made on oath and not subject to cross-examination, does not by itself rebut the prosecution evidence or discharge the burden cast upon him once the prosecution has succeeded in establishing a prima facie case. This Court in the case of *Khurshid v. The State* (PLD 1996 SC 305) while appraising the circumstantial evidence the court is to keep in mind the location of the incident. If the place of incident is a place where no witness was available and the accused had the exclusive knowledge about the incident, the simpliciter denial on the part of the accused will not be sufficient to nullify the circumstantial evidence of the nature which directly connects him with the commission of the offence charged with. But he should raise a plea of the nature which on being tested on the touch-stone of probabilities warrants a reasonable hypothesis of the accused's innocence. It is by now a well-settled principle of law that conviction, even in cases entailing capital punishment, can safely be recorded on the basis of circumstantial evidence, provided that the circumstances proved form a complete chain which excludes every reasonable hypothesis consistent with the innocence of the accused. However, such evidence must be scrutinized with utmost care and caution. Each circumstance must be independently proved and must be so interlinked with the others that it forms an unbroken chain, leading to no conclusion other than the guilt of the accused. In this regard this Court of *Munawar Hussain v. Imran Waseem* (2013 SCMR 374), has observed that:-

"Even, death penalty can also be awarded on circumstantial evidence but it should be beyond any shadow of doubt. The chain of facts be such that reasonable inference can be drawn that accused has committed the offence. All the facts established should be consistent only with the hypotheses of

guilt of the accused. If any link is missing that will destroy the whole links of such evidence and all the links of the circumstances must lead to the guilt of the accused. It is not a such type of evidence, but it is sufficiency and quality which matters. The circumstantial evidence should be so interconnected that it forms such a continuous chain that its one end touches the dead body and the other the neck of accused thereby excluding all hypothesis of his innocence."

15. Adverting to the question of sentence, the learned Trial Court has awarded the sentence of death to the petitioner-convict under section 302(b), 364-A and 376 PPC and the same has been confirmed by the High Court. The kidnapping of a minor girl of 5/6 years by the petitioner-convict in daylight from an open Bazaar then committing her rape and sodomy inside his house, committing her murder, putting her dead body inside a sack and then throwing the same are such acts of brutality and gruesomeness for which any leniency would amount to extending of premium for such like beats/offenders and leaving threat to the society. No doubt, accused is the favourite child of law but at the same time the court owes duty to the society and the legal heirs of the victim. The sentence awarded to offender should be such which should act as deterrent to the commission of offence. Conceptually sentence to an offender is awarded on the concept of retribution, deterrence or reformation. The purpose behind infliction of sentence is two-fold. Firstly, it would create such atmosphere, which could become a deterrence for the people who have inclination towards crime, and, secondly, to work as a medium in the reforming the offence. Deterrent punishment is not only to maintain balance with gravity of wrong done by a person but also to make an example for others as a preventive measure for reformation of the society. Concept of minor punishment in the law is to make an attempt to reform an individual wrongdoer. However, in the case in hand, where the petitioner-convict abducted a minor girl, committed her rape and sodomy and then committed her murder, no leniency should be shown towards him. The sentence of death would create a deterrence in the society due to which no other person would dare to commit such kind of offence. If in such like cases any lenient view is taken, then peace, tranquillity and harmony of society would be jeopardized and vandalism would prevail in the society. Very wide discretion in the

matter of sentence has been given to the Court which must be exercised judiciously.

16. Accordingly, this petition is dismissed and leave is refused.

Judge

Judge

Judge

Announced in open Court at Islamabad on _____

Judge

Approved for Reporting
M.Siraj Afridi PS